

REMEDIES IN BIDS AND AWARDS

The Loudoun County School Board requires that all bids be conducted in a fair and impartial manner. All qualified bidders shall have access to public business and have a means to appeal or protest any complaint.

An appeal or protest shall be submitted within ten days of the award or the announcement to award, whichever occurs first, to the Division Superintendent or his/her designee, representing the School Board, who will review the matter and provide a written determination within ten days. This decision shall be final unless within ten days the bidder or offeror institutes legal action as provided in Section § 2.2-4364 of the Code of Virginia.

A. Withdrawal of Bid Due to Error. A bidder may withdraw his/her bid from consideration if the price bid was substantially lower than the other bids due solely to a mistake therein, provided the bid was submitted in good faith, and the mistake was a clerical mistake as opposed to a judgment mistake, and was actually due to an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid, which can be clearly shown by objective evidence drawn from inspection of original working papers, documents and materials used in the preparation of the bid sought to be withdrawn. The following procedure shall be used to request withdrawal of a bid unless alternative procedures are provided in the procurement solicitation specific to a particular project: Requests shall be submitted and delivered to the Purchasing Agent or his/her representative in writing. For construction bids, the bidder shall give notice in writing of his/her claim of right to withdraw his/her bid within two business days after conclusion of the bid opening. Bidders for other than construction contracts shall give notice in writing of his/her claim of right to withdraw his/her bid within ten business days after the bid opening.

1. The Division Superintendent or his/her designee shall make the decision as to whether the bid may be withdrawn. A decision denying withdrawal of bid shall be final and conclusive unless the bidder appeals the decision within ten days after receipt of the decision by instituting legal action as provided in Section § 2.2-4364 of the Code of Virginia.

2. If a bid is withdrawn under the authority of this section, the lowest responsive and responsible remaining bid shall be deemed to be the low bid. No bidder who is permitted to withdraw a bid shall, for compensation, supply any material or labor to or perform any subcontract or other work agreement for the person or firm to whom the contract is awarded or otherwise benefits, directly or indirectly, from the performance of the project for which the withdrawn bid was submitted.

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B. Determination of Non-responsibility. Any bidder who, despite being the apparent low bidder, is determined not to be a responsible bidder shall be notified in writing by the Division Superintendent or his/her designees. In any case such notice shall state the basis for the determination, which shall be final unless the bidder within ten days institutes legal action as provided in Section § 2.2-4364 of the Code of Virginia.

C. Debarment. For unsatisfactory performance of a contract, a contractor may be debarred for specified periods of time from contracting for particular types of supplies or services. The Purchasing Agent will provide written notice of debarment to the contractor setting forth the reasons and period of time.

All rights of bidders, offerors, or contractors shall be governed by the Code of Virginia.

[Former Policy 4-26]

Adopted: 5/10/94

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Confirmed 10/13/09 and 10/8/21

Current Revision: 5/10/16

Legal Refs: Code of Virginia, 1950, as amended, §§ [2.2-4330](#), [2.2-4358](#), [2.2-4360](#), and [2.2-4364](#)